

## 24NNCV01512 24NNCV01512

County: los-angeles

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Case Number: 24NNCV01512 Hearing Date: September 18, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION FOR TERMINATING SANCTIONS; REQUEST FOR SANCTIONS

Hearing Date: 9/18/26

CASE NO.: 24NNCV01512

CASE NAME: Timothy Scott Crabaugh, et al. vs. Custom Iron Corp.,  
et al.

Moving Party: Defendants DBAC, Inc. and Mike Parks

Responding Party: Unopposed

Notice: Sufficient

Ruling:

GRANT.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 3:30 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

## BACKGROUND

This is a premises liability action. On May 23, 2025, plaintiffs Timothy Scott Crabaugh, Dawn Crabaugh, and the Estate of Timothy Crabaugh by and through Amy Crabaugh filed a Second Amended Complaint (SAC) against defendants DBAC, Inc., Mike Parks, Custom Iron Corporation, Matt Fox, Mike Knee, David Spring, and Efrain M. Ortiz (collectively, Defendants). Plaintiff Dawn Crabaugh has since dismissed her action against Defendants; the only remaining plaintiff is the Estate of Timothy Crabaugh by and through Amy Crabaugh (Plaintiff).

On June 23, 2026, Defendants DBAC, Inc. and Mike Park filed the instant motion seeking terminating sanctions against Plaintiff. As of September 16, 2026, Plaintiff has not filed an opposition.

## LEGAL STANDARD

Code of Civil Procedure § 2023.030 gives the court the discretion to impose sanctions against anyone engaging in a misuse of the discovery process. Misuse of the discovery process includes failure to respond to an authorized method of discovery or disobeying a court order to provide discovery. (Code Civ. Proc., § 2023.010, subds. (d), (g).) A court may impose escalating sanctions where a party disobeys a discovery order. (Code Civ. Proc. § 2025.450(h).) A court may impose terminating sanctions by striking pleadings of the party engaged in misuse of discovery or entering default judgment. (Code Civ. Proc., § 2023.030, subd. (d).) A violation of a discovery order is sufficient for the imposition of terminating sanctions. (Collison & Kaplan v. Hartunian (1994) 21 Cal.App.4th 1611, 1620.) Terminating sanctions are appropriate when a party persists in disobeying the court's orders. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 795-796.)

The court should consider the totality of the circumstances, including conduct of the

party to determine if the actions were willful, the detriment to the propounding party, and the number of formal and informal attempts to obtain discovery. (Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.) If a lesser sanction fails to curb abuse, a greater sanction is warranted. (Van Sickel v. Gilbert (2011) 196 Cal.App.4th 1495, 1516.) However, "the unsuccessful imposition of a lesser sanction is not an absolute prerequisite to the utilization of the ultimate sanction." (Deyo, supra, 84 Cal.App.3d at p. 787.) Before any sanctions may be imposed the court must make an express finding that there has been a willful failure of the party to serve the required answers. (Fairfield v. Superior Court for Los Angeles County (1966) 246 Cal.App.2d 113, 118.) Lack of diligence may be deemed willful where the party understood its obligation, had the ability to comply, and failed to comply. (Deyo, supra, 84 Cal.App.3d at p. 787; Fred Howland Co. v. Superior Court of Los Angeles County (1966) 244 Cal.App.2d 605, 610-611.) The party who failed to comply with discovery obligations has the burden of showing that the failure was not willful. (Deyo, supra, 84 Cal.App.3d at p. 788; Cornwall v. Santa Monica Dairy Co. (1977) 66 Cal.App.3d 250; Evid. Code, §§ 500, 605.)

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terminating sanction is a "drastic measure which should be employed with caution." (Deyo, 84 Cal.App.3d at p. 793.) "A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280.) While the court has discretion to impose terminating sanctions, these sanctions "should be appropriate to the dereliction and should not exceed that which is required to protect the interests of the party entitled to but denied discovery." (Deyo, 84 Cal.App.3d at p. 793.) "[A] court is empowered to apply the ultimate sanction against a litigant who persists in the outright refusal to comply with his discovery obligations." (Ibid.

## DISCUSSION

### Terminating Sanctions

Defendants seek

an order imposing terminating sanctions against Plaintiff for her repeated failure to appear for deposition and pay monetary sanctions. (Mot., p. 2.)

Defendants

argue that Plaintiff has failed to appear for deposition in this action despite three valid deposition notices and extensive meet and confer efforts. (Mot., p. 2.) Defendants also note that Plaintiff has failed to file oppositions and appear at noticed hearings. (Mot., pp. 3-4.) Defendants argue that they are entitled to take the deposition of Plaintiff as it is critical to the claims of the estate. (Mot., p. 5.) Defendants argue that they have met and conferred with Plaintiff on several occasions, and Plaintiff still has failed to appear or engage. (Ibid.) Defendants argue that the refusal to participate without justification is an abuse of the discovery process deserving of terminating sanctions. (Mot., pp. 6-7.) Defendants argue that Plaintiff has clearly displayed no interest in pursuing this litigation. (Mot., p. 8.)

Here, the Court finds that Plaintiff's violations were willful. Defendants have served notices of depositions on Plaintiff on three separate occasions, August 1, 2025, November 18, 2025, and April 27, 2026, and Plaintiff has failed to appear at all three scheduled depositions. (O'Hara Decl., ¶ 3.) Further, Defense counsel declares they have met and conferred with Plaintiff on several occasions about these depositions and she has responded. (O'Hara Decl., ¶¶ 5-9.) In her correspondence Plaintiff indicated she would respond to Defense counsel at a later date. (O'Hara Decl., ¶ 7, Exh. 6.) However, Defendants subsequently filed a motion to compel deposition, and Plaintiff did not oppose the motion or appear at the noticed hearing. (O'Hara Decl., ¶ 12.) Plaintiff has shown that she is aware of these communications and willfully disregarding Defendants' communications and the Court's orders.

Since August of 2025, Plaintiff has refused to appear for Court ordered depositions, noticed hearings, disregarded the discovery process, failed to pay ordered sanctions, and failed to respond to any communications from Defendants' counsel. (O'Hara Decl., ¶¶ 3, 12, 16.) Thus, the Court finds the repeated violations a willful abandonment of the litigation process.

The burden then shifts to Plaintiff to show the failures were not willful. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 788; *Cornwall v. Santa Monica Dairy Co.* (1977) 66 Cal.App.3d 250; Evid. Code, §§ 500, 605.) Plaintiff filed no opposition and therefore made no showing that the

repeated failures to appear were not willful.

California law favors an incremental approach to sanctions; the Court has imposed sanctions on Plaintiff one time. (O'Hara Decl., ¶ 12.) However, Defendants represent that they have not communicated with Plaintiff since September of 2025. This displays an abandonment of the litigation process.

Accordingly, the motion for terminating sanctions is GRANTED.

#### Monetary Sanctions

In addition to terminating sanctions, Defendants request monetary sanctions in the amount of \$3,468.20 reflecting attorney's fees, motion filing fees, and deposition costs in connection with this action. (Mot., p. 7.) Defense counsel declares spending 10.8 hours drafting and preparing the instant motion, an anticipated reply, and attending the hearing at a rate of \$305/hour. (O'Hara Decl., ¶ 15.) Defense counsel also cites filing fee of \$60 and court reporter costs in the amount of \$114.20. (Ibid.)

Code of Civil Procedure § 2023.030 gives the court the discretion to impose sanctions against anyone engaging in a misuse of the discovery process. Misuse of the discovery process includes failure to respond to an authorized method of discovery or disobeying a court order to provide discovery. (Code Civ. Proc., § 2023.010, subds. (d), (g).)

The Court, in its discretion, will reduce the monetary sanctions as follows: \$1,220 reflecting 4 hours at a rate of \$305/hour, plus a \$60 filing fee for the instant motion, and a court-reporter fee of \$750. Defendants do not provide the Court with invoices for the cited court reporter costs. This results in a total of \$2,030 in monetary sanctions against Plaintiff.

Accordingly, the request for monetary sanctions is GRANTED.

CONCLUSION

AND ORDER

Defendants DBAC,  
Inc. and Mike Parks's motion for terminating sanctions is GRANTED.

Defendants'  
request for sanctions is GRANTED. Plaintiff is ordered to pay Defendant in the  
amount of \$2,030 within 30 days from this date.

MOVING PARTY

shall

provide notice and provide a proposed order consistent with this ruling within  
10 days from this date.